

# HOUSE . . . . . No. 4040

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## The Commonwealth of Massachusetts

PRESENTED BY:

***Michelle L. Badger and Hadley Luddy***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act preventing the discharge of radioactive materials.

PETITION OF:

| NAME:                      | DISTRICT/ADDRESS:     | DATE ADDED:      |
|----------------------------|-----------------------|------------------|
| <i>Michelle L. Badger</i>  | <i>1st Plymouth</i>   | <i>1/17/2025</i> |
| <i>Vanna Howard</i>        | <i>17th Middlesex</i> | <i>1/30/2025</i> |
| <i>Lindsay N. Sabadosa</i> | <i>1st Hampshire</i>  | <i>3/22/2025</i> |
| <i>Kristin E. Kassner</i>  | <i>2nd Essex</i>      | <i>6/23/2025</i> |

# HOUSE . . . . . No. 4040

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By Representatives Badger of Plymouth and Luddy of Orleans, a petition (accompanied by bill, House, No. 4040) of Michelle L. Badger, Vanna Howard and Lindsay N. Sabadosa relative to the discharge of spent fuel pool water. Environment and Natural Resources.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act preventing the discharge of radioactive materials.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           (a) The department of environmental protection in consultation with the department of  
2 public health shall study, examine and report on the potential environmental and economic  
3 impacts caused by the discharge of spent fuel pool water, including discharge by any means or  
4 methods that increases the rate of evaporation of any materials created as a waste product of  
5 nuclear energy from spent fuel pools including, but not limited to, processed water or any other  
6 liquid with elevated levels of radioactivity including, but not limited to, tritium or boron  
7 associated with the decommissioning of the any nuclear power plant.

8           (b) The study shall include, but not be limited to: (i) examining and investigating the  
9 potential environmental and economic impacts of discharge, including discharge by any means  
10 or methods that increases the rate of evaporation; (ii) analyzing the impacts to consumer  
11 perception of the discharge of spent fuel wastewater on the fishing, aquaculture, tourism,  
12 restaurant industries and other sectors deemed appropriate by the department of environmental

13 protection in consultation with the department of public health; (iii) undertaking regular  
14 monitoring of the land, air and water to determine the pollution levels created by discharge,  
15 including discharge by any means or methods that increase the rate of evaporation; and (iv)  
16 making recommendations on measures to mitigate or avoid potential negative impacts on such  
17 industries.

18 (c) The department of environmental protection pursuant to section 16K of chapter 132A  
19 of the General Laws, in consultation with the office of coastal zone management, shall not allow  
20 the discharge of spent fuel pool water, including discharge by: (i) any means or methods that  
21 increase the rate of evaporation of spent fuel pool water; or (ii) any materials created as a waste  
22 product of nuclear energy from spent fuel pools including, but not limited to, processed water or  
23 any other liquid with elevated levels of radioactivity including, but not limited to, tritium or  
24 boron into the waters of the commonwealth until 90 days after the department of environmental  
25 protection in consultation with the department of public health issues its report.

26 (d) The department of environmental protection shall submit a report detailing the results  
27 of the study, along with recommendations and any proposed standards and legislation necessary  
28 to carry out its recommendations, to the: (i) the joint committee on public health; (ii) the joint  
29 committee on environmental and natural resources; and (iii) clerks of the house of  
30 representatives and senate not later than December 31, 2026.